

1	Patel vs. Patel 30-2025-01459283	<u>Motion to Stay</u> Defendant Minalben Bharatkuma Patel's Motion to Stay Partition Action Pending Resolution of Related Probate Actions is DENIED. <u>Pending Motion</u> Defendant Minalben Bharatkumar Patel moves for a stay of this action pending resolution of two actions filed in Los Angeles County Superior Court, Los Angeles County Superior Court, Probate Division, <i>In re the Estate of Bharatkumar Gopalji Patel</i>, Case Number 24STPB10451, and <i>In re the Estate of Bharatkumar Gopalji Patel</i>, Case Number 24STPB11240 (Related Actions). <u>Preliminary Injunctive Relief</u> Defendant first contends that a stay should be issued pursuant to Civil Procedure Code section 526(a)(6). Section 526 of the Civil Procedure Code authorizes a court to grant injunctive relief before judgment in the following cases: (1) When it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually. (2) When it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. (3) When it appears, during the litigation, that a party to the action is doing, or threatens, or is about to do, or is procuring or suffering to be done, some act in violation of the rights of another party to the action respecting the subject of the action, and tending to render the judgment ineffectual. (4) When pecuniary compensation would not afford adequate relief.
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		(5) Where it would be extremely difficult to ascertain the amount of compensation which would afford adequate relief. (6) Where the restraint is necessary to prevent a multiplicity of judicial proceedings. (Code Civ. Proc., § 526, subd. (a).) Therefore, Section 526 grants the court authority to require a party to take certain actions or prohibit a party from taking certain action(s). For example, under Section 526(a)(6), the court may enjoin <i>a party</i> from filing or prosecuting a second lawsuit after the first lawsuit had already decided the matter. (See <i>Rynsburger v. Dairymen's Fertilizer Co-op., Inc.</i> (1968) 266 Cal.App.2d 269, 279 [affirming injunction against plaintiff prosecuting second lawsuit in Orange County after dispute had been resolved by judgment in San Bernardino County court].) However, Section 526 does not provide this court authority to stay the entire action. <u>Civil Procedure Code section 128 and Inherent Power</u> Defendant also argues that a stay is appropriate based on Civil Procedure Code section 128 and the court's inherent powers. "Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency." (<i>Freiberg v. City of Mission Viejo</i> (1995) 33 Cal.App.4th 1484, 1489; see also Code Civ. Proc., § 128, subd. (a) ["Every court shall have the power . . . (3) [t]o provide for the orderly conduct of proceedings before it . . . [and] (8) [t]o amend and control its process and orders so as to make them conform to law and justice."].) "[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. How this can best be done calls for the exercise of judgment, which must weigh competing interests and maintain an even balance." (<i>Landis v. North American Co.</i> (1936) 299 U.S. 248, 254-255; <i>OTO, L.L.C. v. Kho</i> (2019)
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		8 Cal.5th 111, 141 [same].) The party seeking a stay “must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to someone else.” (<i>Landis v. North American Co.</i>, <i>supra</i>, 299 U.S. at p. 255.) In determining if a stay is appropriate pending resolution of another proceeding, factors to be considered include: “(1) the interest of the party opposing the stay in proceeding expeditiously with the action, and the potential prejudice to the party opposing the stay of a delay; (2) the burden which any particular aspect of the proceedings may impose on the party seeking the stay; (3) the convenience to the court in management of its cases and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending cases.” (<i>People ex rel. Harris v. Rizzo</i> (2013) 214 Cal.App.4th 921, 952.) Here, Defendant contends that the Related Actions will determine the ownership status the residence located 4060 Naples Court, Yorba Linda, California 92886 (Subject Property) – the real property that is at the heart of this action. However, the pleadings in the Related Actions submitted by Defendant show that they involve disputes over the ownership of certain business entities, specifically hotels, by the estate of Bharatkumar Gopalji Patel. It is true that Plaintiff is alleged to have misappropriated interests in the business entities from the estate of Bharatkumar Gopalji Patel and that Defendant is alleged to be an heir of Bharatkumar Gopalji Patel, entitled to an interest in the business entities. However, there is no mention of the Subject Property in the Related Actions. Nor are there any allegations in the pleadings in this action that the estate of Bharatkumar Gopalji Patel has any interest in the Subject Property. Importantly, Defendant fails to explain how the determination of the estate’s ownership interest in the hotels has any effect on Plaintiff’s or Defendant’s ownership of the residential property
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		that is at the heart of this action. The fact that counsel asserts it does not make it so. (See <i>Villacorta v. Cemex Cement, Inc.</i> (2013) 221 Cal.App.4th 1425, 1433 [“Argument by counsel is not evidence.”].) Thus, any assistance that resolution of the Related Actions could provide to the resolution of this action is outweighed by the delay that a stay of this action would engender. Defendant has not made out a clear case of hardship or inequity of being required to go forward. <u>Exclusive Concurrent Jurisdiction</u> Defendant next asserts that the court should stay this action pursuant to the rule of exclusive concurrent jurisdiction. Under that rule, “when two superior courts have concurrent jurisdiction over the subject matter and all parties involved in litigation, the first to assume jurisdiction has exclusive and continuing jurisdiction over the subject matter and all parties involved until such time as all necessarily related matters have been resolved.” (<i>Plant Insulation Co. v. Fibreboard Corp.</i> (1990) 224 Cal.App.3d 781, 786-787, quoting <i>California Union Ins. Co. v. Trinity River Land Co.</i> (1980) 105 Cal.App.3d 104, 109.) This rule is designed to avoid the spectacle of the same parties litigating the same issue in two different courts at the same time, which risks “the real possibility of unseemly conflict between courts that might arise if they were free to make contradictory decisions or awards.” (<i>Franklin & Franklin v. 7-Eleven Owners for Fair Franchising</i> (2000) 85 Cal.App.4th 1168, 1175.) Thus, the first court to assert jurisdiction assumes it to the exclusion of all other courts. (<i>Ibid.</i>) In this case, the rule of exclusive concurrent jurisdiction does not apply because the subject matter of the Related Actions – the estate assets of Bharatkumar Gopalji Patel including the hotels – is different from the subject matter of this action – the Subject Property, which is a piece of residential real property. Defendant does not explain how the litigation and rulings in the Related Actions might conflict with the litigation and rulings in this action.
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2	Romero vs. Charles 30-2025-01510940	<u>Motion to Be Relieved as Counsel</u> Counsel Enrique Zuniga and Friedman & Chapman, LLP's Motion to Be Relieved as Counsel for Plaintiff Sebastian Hernandez is GRANTED. Counsel Enrique Zuniga and Friedman & Chapman, LLP are ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling. Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Enrique Zuniga and Friedman & Chapman, LLP are ORDERED to serve Plaintiff Sebastian Hernandez with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d). Counsel Enrique Zuniga and Friedman & Chapman, LLP shall be relieved as counsel of record for Plaintiff Sebastian Hernandez effective upon the filing of a proof of service showing timely service of the signed Form MC-053 and notice of this ruling. <u>Pending Motion</u>